

ORDER BELOW EXH. 25
(Passed on 08-10-2025)

This is an application filed by the plaintiff for getting ex-parte injunction.

2. The plaintiff is contending that, the defendant no.3 Tahsildar, Akot had sought police aid for removing the alleged obstruction lying over the alleged road goes from the field of plaintiff. Actually no such road is in existence, though the in-charge of Hivarkhed Police Station has issued notice dated 08.10.2025 to plaintiff under Section 168 of BNSS, 2023. In such circumstances there is apprehension that the defendants may illegally create road from the agricultural land of plaintiff by taking police aid. So, the defendants be directed to maintain status-quo in respect of subject matter of this suit.

3. The note of this application is taken by learned AGP. Heard the learned advocate of plaintiff and learned AGP for state. Considering their submission before passing any order of injunction against the defendant no. 3, he needs to be personally heard on this application. Hence, it would be just and proper to direct the defendant no. 3 to remain personally present in court on 09.10.2025 at 11.00 a.m. Hence, issue notice to defendant no. 3 vide Order V Rule 3 of CPC for his oral examination vide Order X Rule 2 of CPC. The learned AGP is hereby requested to take the note of this order and shall inform to defendant no. 3 accordingly.

Date : 08.10.2025.


(Mahesh S. Kale)
Civil Judge Senior Divison,
Akot.